

Stereo HCJDA 38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
(JUDICIAL DEPARTMENT)

Crl.Org.No.27244 of 2026

Syeda Amira Batool

Vs.

Rao Abdul Karim, I.G. Police Punjab Lahore

Petitioner by:- Syed Mansoor Ali Bukhari,
Advocate.

Respondent by: Mr. Salman Asif Warraich, Assistant
Advocate General Punjab alongwith
Mazhar (DSP) and Muhammad
Arshad (SI).

Date of hearing: - **21.05.2026**

JUDGMENT

RAHEEL KAMRAN, J:-Through this contempt of Court petition filed under Article 204 of the Constitution of Islamic Republic of Pakistan, 1973 (‘the **Constitution**’) read with sections 3 & 4 of Contempt of Court Ordinance, 2003 (‘the **Ordinance**’), the petitioner seeks initiation of contempt proceedings against the respondent on the allegation that judgment dated 01.12.2020 passed by this Court in Writ Petition No.31667 of 2014 has not been implemented and that the respondent through subsequent administrative actions has rendered the said judgment ineffective. The petitioner accordingly seeks enforcement of the aforesaid judgment and appropriate action against the respondent for non-compliance thereof.

2. Briefly stated, the Punjab Public Service Commission (**PPSC**) invited applications for recruitment against twenty-seven posts of Sub-Inspector (BS-14) for Sargodha Region in the Punjab Police Department (“**hereinafter referred to as 'the department'**”). The petitioner, who fulfilled the prescribed eligibility criteria, applied for the said post, successfully

qualified the selection process and was recommended by the PPSC for appointment against women quota. However, during the process of verification of character and antecedents, the respondent-department declined to issue appointment letter to the petitioner on the ground that her father and brother had allegedly been involved in drug trafficking cases and, therefore, she did not satisfy the requirement of good family background. Aggrieved thereby, the petitioner approached this Court through Writ Petition No.26289 of 2014 which was disposed of on 01.10.2014 with a direction to the Inspector General of Police, Punjab to decide the petitioner's representation strictly in accordance with law. Pursuant thereto, the Inspector General of Police, Punjab afforded an opportunity of hearing to the petitioner and thereafter rejected her claim for appointment vide order dated 06.11.2014.

The petitioner challenged the aforesaid order through Writ Petition No.31667 of 2014. This Court vide judgment dated 01.12.2020 accepted the writ petition, set aside order dated 06.11.2014 and directed the respondent to issue appointment letter in favour of the petitioner against the post of Sub-Inspector. While allowing the petition, this Court held as follows:-

“6. During arguments, learned Law Officer has referred to rule 21 of the Punjab Civil Servants (Appointment & Conditions of Service) Rules, 1974 to establish that it is sine-qua-non for a selectee to bear unblemished character for appointment in any government department. When asked as to whether there is any shadow on the character of the petitioner herself, learned Law Officer has answered in negative.

7. During arguments, when confronted with the query as to whether any person can be debarred to enter into Police service whose other family members are/were involved in nefarious activities, learned Law Officer failed to convince the Court by referring to any provisions of the Police Order, 2002 or Punjab Police Rules, 1934 imposing such clog.

*8. In view of the above, instant petition is **accepted**, impugned order, dated 06.11.2014, passed by respondent No.1, is **set-aside** and the said respondent is directed to issue appointment letter in favour of the petitioner against the post of Sub Inspector forthwith.”*

Feeling aggrieved by the aforesaid judgment, the department preferred Intra Court Appeal (ICA) No.4161 of 2021 before a Division

Bench of this Court, while the petitioner instituted Criminal Original No.53438-W of 2021 seeking implementation of judgment dated 01.12.2020 whereupon a conditional appointment order dated 17.09.2021 was issued in her favour as T/Sub-Inspector and the said contempt petition was disposed of vide order dated 24.09.2021 in the following terms:-

“Learned Law Officer, while producing copy of order, dated 17.09.2021, passed by the District Police Officer, Bhakkar, submits that order of this Court, dated 01.12.2020, passed in W.P.No.31667 of 2014, has been complied with, that might be the reason for non-appearance of the petitioner or his learned counsel.

*2. In view of the above, there is nothing to be proceeded in this petition which is **disposed of** accordingly.”*

The petitioner was serving as Assistant Education Officer in the Education Department, District Bhakkar at the relevant time. The department also communicated the aforesaid appointment order to the Chief Executive Officer (Education), Bhakkar. The petitioner, however, refused to join the department pursuant to the conditional appointment order and through a reply duly forwarded by the Chief Executive Officer (Education), Bhakkar vide Office Endorsement No.Admn/7124 dated 16.10.2021, reiterated her stance in the following terms:-

"جنا ب ڈپٹی ڈسٹرکٹ ایجوکیشن آفیسر تحصیل بھکر حوالہ آمد ، لیٹر نمبر 11522 مورخہ 13.10.2021 منجانب جناب D.P.O صاحب ضلع بھکر معروض ہوں کہ لیٹر ہذا میں جناب D.P.O صاحب بھکر نے واضح طور پر تحریر کیا ہے کہ محکمہ پولیس میں میری بھرتی بطور T / Sub Inspector مشروط کیا گیا ہے کیونکہ محکمہ پولیس میں عدالت العالیہ لاہور میں ICA No.4161/2021 دائر کر رکھی ہے -

من سائلہ ICA (انٹرا کورٹ ایپل) کو contest کرنا چاہتی ہوں تا کہ کہیں ایسا نہ ہوں کہ میں AEO کی ملازمت سے بھی مستعفی ہوں جاؤں اور ICA کا فیصلہ من سائلہ کے خلاف آنے کی صورت میں کہیں کی بھی نہ رہوں لہذا من سائلہ تا تصفیہ ICA محکمہ پولیس کو join نہیں کرنا چاہتی بلکہ ICA کو contest کرنا چاہتی ہوں۔

فقط مورخہ -16.10.2021"

Notwithstanding the aforesaid response, the department issued a further notice dated 28.10.2021 requiring the petitioner to join service, followed by a final seven-day notice dated 28.12.2021. As the petitioner did not join the department pursuant to the conditional appointment

order, the said appointment was ultimately withdrawn vide order dated 02.03.2022. The ICA, however, neither culminated in reversal nor modification of the judgment dated 01.12.2020 and was ultimately dismissed as withdrawn on 27.01.2026. Following withdrawal of the appeal, the petitioner once again approached the department seeking implementation of the judgment and expressing her willingness to join service. The matter was thereafter examined by the District Police Officer, Bhakkar, who, through a speaking order dated 08.05.2026, held that the petitioner was not entitled to appointment as Lady T/Sub-Inspector. Aggrieved by the said order and alleging that the cumulative effect of the aforesaid administrative measures has been to frustrate implementation of the judgment dated 01.12.2020, the petitioner has instituted the present contempt petition.

3. Learned counsel for the petitioner contends that the respondent has circumvented the judgment dated 01.12.2020 through a series of administrative actions. He submits that the direction issued by this Court was clear and unequivocal yet the department issued only a conditional appointment order dependent upon the outcome of the ICA preferred by the department itself. He argues that the petitioner cannot be penalized for awaiting the outcome of the very appeal upon which the respondent had chosen to make her appointment contingent. He further submits that after withdrawal of ICA No.4161 of 2021, the department was under a legal obligation to implement the judgment without reservation but instead relied upon the withdrawal order dated 02.03.2022 and speaking order dated 08.05.2026 to deny the petitioner the fruits of the judgment. According to learned counsel, the subsequent administrative measures were designed to frustrate the direction of this Court and cannot legally survive once the judgment has attained finality.

4. Conversely, the respondent through its reply/report has taken the stance that no case of contempt is made out. According to the department, appointment order dated 17.09.2021 was issued in favour of the petitioner in compliance with the judgment dated 01.12.2020. The respondent submits that despite repeated opportunities, notices and

communications, the petitioner refused to join service. It is further maintained that the appointment order was validly withdrawn on 02.03.2022 and that the petitioner's subsequent request was considered through speaking order dated 08.05.2026. The respondent asserts that if the petitioner is aggrieved of the speaking order, her remedy lies before the competent forum in accordance with law and not through contempt proceedings.

5. Learned counsel for the parties have been heard and the record of the case has been perused with their able assistance.

6. The controversy raises three interlinked questions: firstly, whether an appointment order expressly made subject to the outcome of ICA No.4161 of 2021 could amount to effective compliance of judgment dated 01.12.2020 in Writ Petition No.31667 of 2014; secondly, whether the petitioner's decision not to relinquish her existing permanent service and to await the final outcome of the appeal could be treated as abandonment of her claim for the appointment in question; lastly, whether withdrawal order dated 02.03.2022 and speaking order dated 08.05.2026 could be relied upon to refuse implementation of a judgment which had remained operative throughout and had ultimately attained finality.

7. To determine the legal aspects involved in the matter, it is appropriate to first advert to the constitutional and statutory framework governing contempt jurisdiction. Article 204 of the Constitution of the Islamic Republic of Pakistan, 1973 provides as follows:-

“Article 204. (1) In this Article, "Court" means the Supreme Court or a High Court.

(2) A Court shall have power to punish any person who

- (a) abuses, interferes with or obstructs the process of the Court in any way or disobeys any order of the Court;
- (b) scandalizes the Court or otherwise does anything which tends to bring the Court or a Judge of the Court into hatred, ridicule or contempt;
- (c) does anything which tends to prejudice the determination of a matter pending before the Court; or

(d) does any other thing which, by law, constitutes contempt of the Court.

(3) The exercise of the power conferred on a Court by this Article may be regulated by law and, subject to law, by rules made by the Court.”

A plain reading of Article 204 of the Constitution shows that the superior Courts possess constitutional authority to proceed against and punish any person found guilty of contempt of Court. Sub-article (3) of Article 204 of the Constitution not only empowers the legislature to regulate exercise of authority under that Article but also this Court by rules made in that regard so long as those are not inconsistent with the law. Clause (3) *ibid* is not meant to diminish or make uncertain the constitutional power of the superior Courts to punish for contempt but only to regulate it since authority in that regard directly flows from Article 204(2) of the Constitution. Such authority of the Court flows directly from Article 204 itself. It permits the legislature to provide, by law, the manner, procedure and regulatory framework within which the contempt jurisdiction conferred by the Constitution is to be exercised.

It is in this constitutional setting that the Contempt of Court Ordinance, 2003 was promulgated. Section 3 of the Ordinance defines contempt of Court in the following terms:-

“3. Contempt of Court.---Whoever disobeys or disregards any order, direction or process of a Court, which he is legally bound to obey; or commits a willful breach of a valid undertaking given to a Court; or does anything which is intended to or tends to bring the authority of a Court or the administration of law into disrespect or disrepute, or to interfere with or obstruct or interrupt or prejudice the process of law or the due course of any judicial proceedings, or to lower the authority of a Court or scandalize a Judge in relation to his office, or to disturb the order or decorum of a Court, is said to commit “contempt of Court”. The contempt is of three types, namely, the “civil contempt”, “criminal contempt” and “judicial contempt.”

Since the present matter essentially concerns alleged non-compliance of a judgment of this Court, the relevant category is civil contempt. Section 2(a) of the Ordinance defines civil contempt as follows:-

2. **Definitions.** In this Ordinance, unless there is anything repugnant in the subject or context, ---

(a) “**civil contempt**” means the willful flouting or disregard of,---

(i) an order, whether interim or final, a judgment or decree of a Court;

(ii) a writ or order issued by a Court in the exercise of its Constitutional Jurisdiction;

(iii) an undertaking given to, and recorded by, a Court;

(iv) the process of a Court;

Section 4 of the Ordinance confers jurisdiction upon the superior Courts to punish contempt committed in relation to those Courts, while Section 5 prescribes the punishment that may follow upon proof of contempt. However, these provisions do not mean that every allegation of non-compliance must automatically result in punitive proceedings. The Court must first examine whether the conduct complained of amounts to willful disregard of a binding judicial command and whether the statutory threshold for invoking contempt jurisdiction is met. In this regard, Section 18 of the Ordinance is of particular importance and reads as follows:-

“18. **Substantial detriment.** (1) No person shall be found guilty of contempt of Court, or punished accordingly, unless the Court is satisfied that the contempt is one which is substantially detrimental to the administration of justice or scandalizes the Court or otherwise tends to bring the Court or Judge of the Court into a hatred or ridicule.

(2) In the event of a person being found not guilty of contempt by reason of subsection (1) the Court may pass an order deprecating the conduct, or actions, of the person accused of having committed contempt.

(3) Subject to the provisions of this Ordinance, truth shall be a valid defence in cases of contempt of Court.”

A careful examination of the aforesaid provisions reveals that initiation of contempt proceedings does not automatically follow every allegation of non-compliance or misconduct. Before invoking contempt jurisdiction, the Court must satisfy itself that the statutory requirements prescribed by law are fulfilled. Likewise, a person accused of contempt cannot be held guilty or subjected to punishment unless the conduct complained of is shown to have substantially interfered with the administration of justice, scandalized the Court or otherwise undermined

the dignity and authority of the Court in a manner that tends to bring the Court or its Judges into disrepute, hatred or ridicule.

8. The jurisdiction relating to contempt is invoked not merely to punish disobedience of judicial orders but, more fundamentally, to preserve the authority of the Court and to ensure that its judgments are implemented in their true letter and spirit. Having examined the constitutional and statutory framework governing contempt jurisdiction, the question now requiring determination is not whether some action was ostensibly taken by the respondent-department after the judgment dated 01.12.2020 but whether such action amounted to genuine, effective and lawful compliance with the direction issued by this Court.

9. Admittedly, ICA No.4161 of 2021 was preferred by the department, however, no interim order was passed therein suspending or staying operation of the judgment dated 01.12.2020. It is a settled principle of law that a judgment remains operative, binding and enforceable unless stayed, modified or set aside by a competent forum. Mere pendency of an appeal does not absolve a party from compliance with a subsisting judicial determination.

10. In the instant case, the department seeks to justify its conduct on the ground that appointment order dated 17.09.2021 was issued in favour of the petitioner and, therefore, the judgment stood implemented. Such contention, however, does not withstand scrutiny. The appointment order dated 17.09.2021 issued in favour of the petitioner cannot be regarded as constituting effective compliance with this Court's judgment dated 01.12.2020 passed in Writ Petition No.31667 of 2014. At best, the said order amounted to a conditional offer extended to the petitioner as an interim arrangement, expressly made subject to the final outcome of ICA No.4161 of 2021. Such a course was adopted by respondent to avoid immediate exposure to contempt of Court during the pendency of the appeal wherein the operation of the judgment under challenge had not been suspended. Thus, the conditional appointment order dated 17.09.2021, expressly made subject to the outcome of the pending ICA,

plainly fell short of the mandate contained in the judgment dated 01.12.2020 passed in Writ Petition No.31667 of 2014.

11. The matter, however, does not rest there. The department has further attempted to justify the subsequent withdrawal of the appointment on the premise that the petitioner failed to join service despite repeated notices. The argument is equally unpersuasive. The record reveals that the petitioner had informed the department that she was already serving as Assistant Education Officer in the Education Department against a permanent post who could not relinquish her existing service in order to accept an appointment expressly made subject to the outcome of the pending ICA, however, she clearly conveyed her willingness to join the post upon final adjudication of the appeal. Having itself created uncertainty regarding the petitioner's service status by linking her appointment to the fate of the appeal, the department could not subsequently rely upon her decision to await final adjudication of that appeal as a ground to frustrate the judgment dated 01.12.2020 and defeat her claim. In the peculiar facts and circumstances of the case, the petitioner's conduct cannot be construed as abandonment of the appointment. A party cannot be permitted to derive advantage from a situation brought about by its own conduct.

12. The withdrawal order dated 02.03.2022 must be examined in the above backdrop. The said order was not founded upon any independent legal basis; rather, it emanated directly from the conditional appointment order dated 17.09.2021. Once the very premise upon which the appointment was made is found to be inconsistent with the judgment dated 01.12.2020, the withdrawal order built upon that premise cannot be allowed to curtail or nullify the rights flowing from that judgment.

13. The speaking order dated 08.05.2026 stands on no better footing either. A perusal thereof reveals that the petitioner's request was declined principally on the basis of the withdrawal order dated 02.03.2022 and her alleged failure to join pursuant to the conditional appointment order. The order neither addresses the legal effect of the

judgment dated 01.12.2020 nor takes into account the fact that the ICA stood withdrawn on 27.01.2026. It merely perpetuates the consequences of the earlier conditional administrative measures and, therefore, cannot furnish a lawful basis for withholding implementation of the judgment.

14. Once the legal unsustainability of the departmental measures is appreciated, the effect of the withdrawal of ICA No.4161 of 2021 assumes decisive significance. Upon withdrawal of the said ICA, the judgment dated 01.12.2020 attained finality. At that stage, the respondent was under an unequivocal obligation to place the petitioner in the position contemplated by the judgment. Instead of doing so, the department continued to rely upon the petitioner's failure to accept the conditional offer made during the pendency of the appeal in order to deny her the fruits of the litigation. Such a course cannot be countenanced in law. No administrative order, whether issued during the pendency of the appeal or thereafter, could lawfully be employed to dilute, postpone or defeat the rights that had crystallized in favour of the petitioner by virtue of the judgment dated 01.12.2020.

15. The settled principle of law is that executive and administrative authorities are bound to faithfully implement judicial determinations and cannot dilute, circumvent or frustrate them through subsequent administrative measures. In “Baz Muhammad Kakar and others v. Federation of Pakistan and others” (**PLD 2012 SC 923**), the august Supreme Court observed that implementation of judicial orders is a constitutional obligation resting upon the organs of the State, particularly the Executive and that the contempt jurisdiction of the superior Courts exists to ensure obedience to judicial commands and preservation of the rule of law. Relevant extract from the judgment is reproduced hereunder for reference:-

“The scheme which emerges from the Constitution runs, in short, like this: the Court, in and of itself, has to pass orders and to require the implementation of its orders; responsibility for implementation has been made obligatory on other organs of the State, primarily the Executive. However, in the unfortunate situation that a functionary of the Executive refuses to discharge his constitutional duty, the Court is empowered to punish him

for contempt. Of course, this power of punishing contemnors for disobedience is meant more to be a deterrent than a weapon of aggression. Generally, in a country where the rule of law prevails, a situation of this sort should never arise. And even when it does arise, a contemnor, once fully apprised of the imminent consequences of his disobedience, would purge himself of contempt through compliance. Yet, in periods where the supremacy of the constitution is contested as the dominant ethos of government, it is not surprising that cases do arise where a deterrent effect can be achieved only by an actual exercise of this power. In such cases, the Courts are in fact constitutionally obliged not to shy away from the inevitable. Simply put, a government of laws cannot be created or continued with toothless courts and defiant or blithely noncompliant public functionaries.”

16. Examined in the light of the aforesaid principles, the conduct of the respondent does not withstand judicial scrutiny. The appointment order dated 17.09.2021 was made conditional upon the outcome of the ICA, the withdrawal order dated 02.03.2022 was founded upon the petitioner's non-joining pursuant to that conditional appointment and the speaking order dated 08.05.2026 merely perpetuated the same position. The cumulative effect of these administrative measures has been that the petitioner has remained deprived of the relief granted to her through judgment dated 01.12.2020 notwithstanding the fact that the said judgment remained operative throughout and has now attained finality. Compliance with a judicial determination cannot be cosmetic, conditional or illusory. It must be real, effective and faithful to the command of the Court. Judged by this standard, the respondent cannot be said to have implemented judgment dated 01.12.2020 in its true letter and spirit.

17. In the backdrop of the foregoing discussion, this Court is satisfied that despite judgment dated 01.12.2020 having remained operative throughout and having ultimately attained finality, the petitioner has not been extended the benefit flowing therefrom. The administrative measures adopted by the department during pendency of the ICA have had the effect of frustrating implementation of a binding judicial determination, a course impermissible in law. At the same time, bearing in mind the nature of contempt jurisdiction, which is intended primarily to secure compliance rather than to punish, and keeping in

view the statutory safeguards embodied in the Contempt of Court Ordinance, 2003, this Court considers it appropriate, at this stage, to afford the respondent an opportunity to purge the contempt by ensuring compliance with the judgment.

18. In view of what has been discussed above, this contempt petition is **disposed of** at this stage without initiating punitive contempt proceedings. The respondent is afforded an opportunity to comply with and implement judgment dated 01.12.2020 passed in Writ Petition No.31667 of 2014 in its true letter and spirit within a period of thirty days from the date of receipt of certified copy of this judgment and shall submit a compliance report before the Deputy Registrar (Judicial) of this Court. In the event of failure to comply with the aforesaid judgment within the stipulated period, the petitioner shall be at liberty to institute contempt proceedings afresh against the official(s) responsible for such non-compliance.

(RAHEEL KAMRAN)
JUDGE

Announced in the Open Court on _____.

JUDGE

Approved for reporting

JUDGE

Waqas*